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Seller (Creditor): **Washington Memorial Park & Mortuary, Inc.**

16445 International Boulevard, SeaTac, Washington 98188 Control No.

CEMETERY INTERMENT RIGHTS, MERCHANDISE AND SERVICES PURCHASE/SECURITY AGREEMENT
THIS AGREEMENT PROVIDES FOR ENDOWMENT CARE
RETAIL INSTALLMENT CONTRACT

This Agreement is made this _____ day of _____, _____, by and between the undersigned "Seller" and _____ hereinafter called the "Purchaser."

Address _____
Street City State Zip

Residence Telephone No. _____ Day Telephone No. _____

WITNESSETH THAT: The Seller agrees to sell and Purchaser agrees to buy the following described Interment Rights, Merchandise and Services.

☐ Developed ☐ Predeveloped ☐ Lawn Space ☐ Lawn Crypt ☐ Mausoleum ☐ Niche ☐ Other _____

Description of Interment Rights: _____

Qty	INTERMENT RIGHTS, MERCHANDISE AND SERVICES		ITEMIZATION OF AMOUNT FINANCED	
	Interment Rights (inc. _____ E.C.F.)		(*) Sales Tax .... 10.40 %	
	2nd Right of Interment (inc. _____ E.C.F.)		(a) Total Cash Price (Including Sales Tax)	
	Opening/Closing		Down Payment Cash or Credit Card	( )
	Recording Fee		BW Credit For	( )
	Memorialization Type *		(b) Total Down Payment	( )
	Size _____ Design _____		(c) Unpaid Balance of Cash Price (Amount Financed) (a-b)	
	Memorial Base - Type *			
	Size _____ Color _____		(d) Finance Charge (%)	
	Memorial Setting Fee *		(e) Total of Payments (c+d)	
	Outer Burial Container *		(f) Total Sales Price (a+d)	
	Outer Burial Container Setting Fee *		Remarks:	
	Other Merchandise *			
	Other Merchandise *			
	Discounts (if applicable)	( )		
	Sub-total Cash Price (excluding sales tax)			

ANNUAL PERCENTAGE RATE	FINANCE CHARGE	Amount Financed	Total of Payments	Total Sale Price
The cost of your credit as a yearly rate.	The dollar amount the credit will cost you.	The amount of credit provided to you or on your behalf.	The amount you will have paid after you have made all payments as scheduled.	The total cost of your purchase on credit, including your down payment of _____ (b)
_____ %	(d) _____	(c) _____	(e) _____	(a+d) _____

Your payment schedule will be:

Number of Payments	Payment Amount	Payments Are Due Beginning

See Reverse for additional rules regarding payment terms, e.g. late payment charges.

Upon payment of the Total Sale Price by Purchaser, Seller agrees to convey the above-described Interment Rights to:

Name and address: _____

EXCEPT AS PROVIDED ABOVE, THIS CONTRACT DOES NOT INCLUDE ANY OTHER SERVICES OR MERCHANDISE.

Merchandise Delivered Before Need. The following merchandise items will be delivered early and stored or installed until needed. _____

In accordance with Washington law, the purchase price of these items is not subject to refund and will not be deposited in the prearrangement trust fund referred to below.

NOTICE TO THE PURCHASER: (1) Do not sign this Contract before you read it or if any spaces intended for the agreed terms, except as to unavailable information, are blank. (2) You are entitled to a copy of this Contract at the time you sign it. (3) You may at any time pay off the full unpaid balance due under this Contract, and in so doing you may receive a partial rebate of the finance charge. (4) The finance charge does not exceed 12% per annum computed monthly. (5) You may cancel this Contract if it is solicited in person, and you sign it, at a place other than the Seller's business address shown on the Contract, by mailing or delivering notice of such cancellation or sending a telegram to the Seller at his address shown on the contract or on the attached notice of cancellation which notice shall be posted, sent or delivered not later than midnight of the third day (excluding Sundays and holidays) following your signing this Contract. If you choose to cancel this Contract, you must return or make available to the Seller any merchandise, in its original condition, received by you under this Contract. See the attached notice of cancellation form for further explanation of this right.

If This Sale Was Solicited And Your Agreement To Purchase Was Made At A Place Other Than Seller's Place Of Business:
YOU, THE PURCHASER, MAY CANCEL THIS CONTRACT AT ANY TIME PRIOR TO MIDNIGHT OF THE THIRD BUSINESS DAY AFTER THE DATE THIS CONTRACT IS SIGNED. SEE THE NOTICE OF CANCELLATION (IN DUPLICATE) BEING PROVIDED YOU AT THE TIME OF SIGNING THIS CONTRACT FOR AN EXPLANATION OF THIS RIGHT. CANCELLATION WITHIN THE PERIOD ENTITLES YOU TO A REFUND OF ALL MONIES PAID ON THIS CONTRACT.

I HAVE BEEN ORALLY INFORMED OF MY RIGHT TO CANCEL THIS CONTRACT AND HAVE RECEIVED APPROPRIATE COPIES OF THIS CONTRACT AND THE ABOVE DESCRIBED NOTICE.

Signed this _____ day of _____, _____. Time _____ ☐ AM ☐ PM Source _____

Purchaser _____ _____ Date of Birth

* SSN _____ ☐ Male ☐ Female

Co-Purchaser _____ _____ Date of Birth

* SSN _____ ☐ Male ☐ Female

Counselor: _____ Memorial Counselor Signature

Printed Name: _____

Accepted By: _____ Officer Signature

Accepted this _____ day of _____, _____

You, the Purchaser, acknowledge that you have read this contract and understand its terms and conditions, that this contract contains the entire agreement between you and the Seller, and that there are no other agreements, conditions, warranties or representations.

Contract No. _____

NOTICE: SEE OTHER SIDE FOR ADDITIONAL TERMS THAT ARE PART OF THIS AGREEMENT.

White - Office Copy Yellow - Accepted Copy Pink - Customer Copy

Late Charge. If any payment is more than ten (10) days late, you will be charged interest at the rate of twelve percent (12%) per annum on the late amount, for the period the amount remains unpaid.

Trust Procedures. We will deposit into a prearrangement trust fund, from your payments under this contract, at least 50% of the cash purchase price of the merchandise and services covered by this contract (excluding taxes, interment rights and endowment care charges), until we have delivered the merchandise and services. Amounts from the trust fund may be withdrawn when we deliver merchandise and services or when this contract is cancelled in accordance with its terms. Deliver means that we have actually delivered the merchandise to the Beneficiary, or have permanently installed the merchandise, or have received and stored the merchandise for the Beneficiary until needed, or have paid our supplier for merchandise which the supplier will store for the Beneficiary until needed. Funds received will be applied in the following order: 1) Tax, 2) Interment rights, 3) Endowment Care, 4) Merchandise, 5) Service.

Cancellation by Purchaser. In addition to the cancellation rights set forth on the front of this contract, you or the Beneficiary may cancel this contract by giving us a written demand for cancellation, signed by the Beneficiary. Within 30 days after your cancellation, we will refund to you or the Beneficiary 50% of the payments we have received from you, minus the contract price of any interment rights or merchandise and services already delivered. We will also refund interest earned on trust fund deposits relating to any merchandise and services not delivered before, your cancellation, but not interest earned on any other deposits, as provided by Section 68.46.060 of the Revised Code of Washington.

Substitution, etc. This contract covers only the merchandise and services described on the face of this contract and any additional merchandise or services must be purchased separately. If any of the merchandise covered by this contract is not available when you request our performance under this contract, we may substitute merchandise that is similar in kind and value.

Cemetery Purpose and Regulations. The merchandise and services covered by this contract are for cemetery purposes only and are subject to the rules and regulations of Washington Memorial Park, as they may be amended form time to time. For the safety and maintenance of its grounds, Washington Memorial Park requires the use of an outer burial container for interments and ground inurnments.

Seller's Inability to Perform. In the event this Agreement includes Interment Rights in a section of a preconstructed mausoleum or below ground crypts or predeveloped property. Seller agrees to complete constructions of such section within five years after the date of the first sale of Interment Rights therein. If construction is not completed within five years of the date of such first sale, all monies paid by the Purchaser hereunder for such Interment Rights shall be refunded upon Purchaser's request; provided, however, that if failure to complete such construction within said five-year period is the result of any strike, lockout, invasion, insurrection, riot, war, order of any civil or military authority or of any court, or any other unforeseen contingency beyond the control of the Seller, then the aforementioned five-year period shall be extended by the duration of the event causing such delay (unless such extension would violate applicable law). In the event the Purchaser dies before the unconstructed crypt or niche or undeveloped grave is constructed or developed, Seller agrees to provide, without additional cost or charge, a constructed crypt or niche or developed grave of equal or better quality than the unconstructed crypt or niche or undeveloped grave, as provided by Section 68.46.100 of the Revised Code of Washington.

Delay in Enforcing Rights; Contract Changes. We can waive any of our rights under this contract without losing them. For example, we can extend the time for making some payments without extending others. Any change in the terms of this contract must be approved by us in writing, and no oral changes are binding.

Arbitration. All disputes arising out of or relating to this contract shall be resolved by submission to a single arbitrator for binding arbitration in Seattle, Washington, administered by, and under the ten current Commercial Arbitration Rules of the American Arbitration Association or its successor; provided however, that such rules shall be modified to incorporate the Washington Rules of Evidence to the extent that they relate to the admissibility of evidence. The arbitration shall be conducted without prior discovery, including depositions, document requests, interrogatories or requests for admission. The arbitrator shall have the discretion to award reasonable costs, but no attorney's fees, to the prevailing party. A party who fails to commence arbitration within one year from the date on which the facts giving rise to the dispute arose agrees that it shall have waived all of its rights and shall thereafter be barred from any remedy in connection therewith. **BY SIGNING THIS CONTRACT YOU ARE AGREEING TO HAVE ANY DISPUTED ISSUE DECIDED BY NEUTRAL ARBITRATION AND YOU ARE GIVING UP YOUR RIGHT TO A JURY OR COURT TRIAL.**

General. This contract contains the entire agreement between you and us. If there is more than one Purchaser, each Purchaser is liable for the obligations and liabilities of this contract. This contract is binding on the heirs, executors, administrators, successors and assignees of both the Purchaser and Seller. If any part of this contract is not valid, all other parts will remain enforceable. All payments due under this Agreement shall be in lawful monies of the United States. Notices to the Purchaser shall be sufficient if mailed to the Purchaser's last known address.

Required Payment in Full Before the Scheduled Date. When you request our delivery of services and merchandise at time of need, we will require that you pay in full any unpaid balance remaining under this contract before we provide any of the merchandise and services. In figuring what you owe, we will refund part of the Finance Charge, figured the same as if you had prepaid in full. For interment rights or merchandise intended for multiple use, such as companion crypts, niches, urns, markers, etc., the unpaid balance is due upon use or delivery.

Right to Prepay. You can prepay all of your debt and get a refund or part of the Finance Charge. The refund will be figured by the “Rule of seventy-eighths,” a method commonly used to figure refunds on installment contracts.

Default. If you fail to make any payment within sixty days after it is due, we may cancel this contract, terminate our obligation to provide you with the merchandise and services covered by this contract, reclaim all rights to the merchandise, interment rights and services, and keep all payments you have made to us. Seller is entitled to retain such items and monies as liquidated damages and not as a penalty. Seller and Purchaser agreeing that in the event of such default, it would be impractical or extremely difficult to fix the actual damages resulting from said default. However, if within five years after our cancellation you make a new purchase of merchandise and services from us, we will credit the funds you paid under this contract against the price of the new purchase.

Assignment and Successors. You can assign and transfer your rights under this contract anytime. If there are no past due installments and if you first give us written notice of the transfer, including the name and address of the person to whom it is transferred and of the new Beneficiary. This Agreement is binding on the heirs, executors, administrators, successors and assigns of the Purchaser.

ANY HOLDER OF THIS CONSUMER CREDIT CONTRACT IS SUBJECT TO ALL CLAIMS AND DEFENSES WHICH THE DEBTOR COULD ASSERT AGAINST THE SELLER OF GOODS OR SERVICES OBTAINED PURSUANT HERETO OR WITH THE PROCEEDS HEREOF. RECOVERY HEREUNDER BY THE DEBTOR SHALL NOT EXCEED AMOUNTS PAID BY THE DEBTOR HEREUNDER.

DISCLAIMER OF SELLER'S WARRANTIES: THE ONLY WARRANTY ON ANY GOODS SOLD IN CONNECTION WITH THIS AGREEMENT IS THE EXPRESS WRITTEN WARRANTY, IF ANY, GRANTED BY THE MANUFACTURER. SELLER MAKES NO WARRANTY, EXPRESSED OR IMPLIED, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY, WITH RESPECT TO THE GOODS SO DESCRIBED. WITH RESPECT TO MAUSOLEUM CRYPTS, LAWN CRYPTS OR NICHES SOLD HEREUNDER, THE ONLY WARRANTIES RELATING TO SUCH ITEMS SHALL BE THOSE IMPLIED WARRANTIES PROVIDED BY LAW AND SELLER MAKES NO EXPRESS WARRANTIES WITH RESPECT TO SAID ITEMS.

Electronic Document Disclosure and Consent

Contracts Issued By:
BONNEY WATSON

Mailing Address: **BONNEY WATSON**
16445 International Blvd.
Seatac, WA 98188

Buyer's Name	Buyer's Name

To electronically receive and sign documents related to your BONNEY WATSON contract, you must read and agree to the following terms and conditions.

You have purchased Funeral, Cremation, or Cemetery Goods and/or Services from us and indicated your desire to electronically receive and sign documents related to your Contract. This Electronic Document Disclosure and Consent ("Disclosure") applies to those forms, disclosures and notices required to be given to you and in some cases signed and returned to us as part of the contract. By agreeing to the terms and conditions of this Disclosure, you are agreeing to receive, read, acknowledge and/or sign these documents electronically.

The words "we," "us," and "our" means BONNEY WATSON identified in the documents we provide to you, including your contract. The words "you" and "your" means the individual(s) who has/have purchased goods and/or services as identified on the contract and who is/are identified as having the legal authority to sign the contract.

Documents Provided Electronically: The types of electronic documents you are consenting to receive, read, acknowledge and/or sign includes, but is not limited to the following and will be referred to as "Documents" in this Disclosure:

- Legal and regulatory disclosures, forms, notices and communications associated with the purchase and/or payment of your contract.
- Required forms, notices and/or disclosures relating to contract limits, choices, and selections made.
- Authorization forms relating to this contract.
- Any other notice that must be delivered to or acknowledged or signed by you when purchasing your goods and/or services.

Method of Providing Documents to You Electronically: All Documents we provide to you electronically will be provided either by (1) email; or, (2) accessing a website identified in an email we send to you.

Withdrawing Consent: You may withdraw your consent to receive Documents in electronic form by contacting us at info@bonneywatson.com. At our option, we may treat an invalid email address or malfunction of a previously valid address that you provided, as a withdrawal of your consent to receive electronic Documents. Withdrawing your consent to receive electronic Documents will be effective only after we have a reasonable period of time to process your request.

Updating Your Records: It is your responsibility to provide us with a true, accurate and complete email address, contact, and other information related to this Disclosure and your contracts, and to maintain and promptly update any changes in this information. You can update information (such as your email address) by contacting us at info@bonneywatson.com.

BONNEY WATSON

Electronic Document Disclosure and Consent

Contracts Issued By:
BONNEY WATSON

Hardware and Software Requirements: In order to access, view, sign and retain electronic Documents we make available, your device (i.e. PC, Mac, tablet, pad) must meet the following minimum criteria:

- Internet connection with access to your valid email account
- Browser: Microsoft Internet Explorer 9.0 or later; Mozilla Firefox v7.0 or later; Google Chrome v14 or later; or, Safari v5 or later
- Operating System: Windows Vista or later; iOS 5 or later; or, Android OS2 or later
- Adobe® Acrobat® Reader® 9.5.2 or later
- Sufficient electronic storage capacity on your device
- Printer connected to your device for printing PDF documents

We will update you if there are any changes to the hardware or software requirements that could impact your receiving or signing electronic Documents.

Requesting Paper Copies: We will not send you paper copies of electronic Documents, unless you request it or we otherwise deem it appropriate to do so. You can obtain a paper copy of any electronic Document we provide to you by printing it yourself or requesting we mail a paper copy to you. Requests for paper copies must be made within a reasonable time after we first provided the electronic Document(s) to you. To request a paper copy, contact us at info@bonneywatson.com. There is no charge associated with requesting a paper copy of an electronic Document we send you. We reserve the right, but assume no obligation, to provide a paper (instead of electronic) copy of any Document you have authorized us to provide electronically.

Documents in Writing: All Documents, electronic or paper format, from us to you will be considered "in writing." A copy of all electronic Documents, this Disclosure and any other document that is important to you should be printed or downloaded by you for your records.

Applicable Law: You acknowledge and agree that your consent to electronic Documents is provided in connection with a transaction affecting interstate commerce subject to applicable federal and/or state law governing electronic document delivery and execution, and that you and we both intend that such law govern such transaction to the fullest extent possible to validate our ability to conduct business with you by electronic means.

Termination/Changes: We reserve the right, in our sole discretion, to discontinue the provision of your electronic Documents, or to terminate or change the terms and conditions on which we provide electronic Documents. We will provide you with notice of any such termination or change as required by applicable law.

By selecting "I agree", electronically signing this form as an example of your e-signature, you are agreeing to the terms and conditions set forth in this Disclosure, and you are confirming that you are able to receive the electronic Documents as specified in the hardware and software requirements listed in this Disclosure.

Buyer	Buyer
☐ I Agree ☐ I Decline	☐ I Agree ☐ I Decline
Buyer's Signature X	Buyer's Signature X

Note: your e-signature may be made by signature pad, touchscreen signature, or by selecting a unique font and typing your name in the above signature field. If using a unique font, the same font **must** be used on all documents signed.

Buyer(s) must check one of these boxes to continue with the electronic application.

If Buyer(s) does (do) not agree, then Documents must be printed, signed and submitted in paper format.